



POLICE DEPARTMENT

June 5, 2008

MEMORANDUM FOR: POLICE COMMISSIONER

Re: Police Officer Marjorie Cabrera
Forensic Investigations Division
Tax Registry No. 889676
Disciplinary Case No. 83249/07

The above-named member of the Department appeared before me on March 6, 2008, charged with the following:

1. Police Officer Marjorie Cabrera, assigned to the Forensics Investigations Division, on or about and between July 10, 2007 and August 16, 2007, in [REDACTED], did fail and neglect to safeguard her firearm, a .38 cal. Ruger, Serial # [REDACTED], resulting in said firearm loss. (*As amended*)

P.G. 204-08, Page 2, Paragraph 7 - FIREARMS-GENERAL REGULATIONS
UNIFORMS AND EQUIPMENT

The Department was represented by Lisa McFadden, Esq., Department Advocate's Office, and the Respondent was represented by Stuart London, Esq.

The Respondent, through her counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty as charged.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Sergeant Adam Schneider as its witness.

Stipulated Evidence

The parties stipulated as to the admission into evidence of the following:

1. On July 10, 2007, the Respondent was present at the range to qualify her service firearm, a .38 caliber Ruger, Serial No [REDACTED], hereafter referred to as her service firearm.
2. Police Officer Wendy Enos of the Crime Scene Unit photographed and diagrammed the scene, collected DNA samples and dusted the Respondent's locker for fingerprints.
3. A Crime Scene Unit Report dated August 17, 2007 was prepared, a diagram of female locker room 210 was drawn, and photographs 1 through 15 were taken. The parties further stipulated that photographs 1 through 15 accurately reflect the conditions of the scene as found by the Crime Scene Unit on August 17, 2007.
4. DNA swabs were taken from the locker, lock and handle of locker 1005, P.O. Perez's locker, also referred to as E1; locker handle 0124, P.O. Cabrera's lock, referred to as E2; and P.O. Cabrera's holster, also referred to as E3. DNA extraction was performed on these samples but an insufficient amount of DNA was present for DNA testing. The parties stipulated as to the admission into evidence of laboratory report No. FB0703680.
5. The exterior of the Respondent's locker was dusted for fingerprints. No latent prints were found on the outside of the Respondent's locker. Some partial prints with

insufficient points for processing were located and the locker did not appear to have been wiped down. The handle of the locker and the Respondent's holster were not dusted for prints because these are poor surfaces from which to recover latent prints. The interior of the locker was also not dusted for prints because Police Officer Enos did not believe this was a location where prints were likely to be found. [Department's Exhibit (DX) 1A through 1O are photographs taken by the Crime Scene Unit of the female locker room at the Forensic Investigations Division. DX 2 consists of a Crime Scene Unit Report dated August 17, 2007; a diagram of the female locker room at the Forensic Investigations Division prepared by the Crime Scene Unit; and a laboratory report from the Office of Chief Medical Examiner dated December 11, 2007, collectively.]

6. To date the Respondent's service firearm has not been recovered.

Sergeant Adam Schneider

Schneider, a 19-year member of the Department, is currently assigned to the Police Laboratory at the Forensic Investigations Division. He recalled that on August 16, 2007, both he and the Respondent, whom he supervises, were working a 2200 by 0623 tour of duty. At approximately 2200 hours, the Respondent informed him that when she went to her locker to retrieve her firearm (for the purpose of inspection prior to going on terminal leave), it was not there. Schneider testified that the Respondent told him that the last time she saw the firearm was when she came back from the range and placed it in her locker on the second floor. He stated that the Respondent also has a second locker in the same female locker room.

Schneider testified that he informed the Integrity Control Officer (ICO) of the situation. Schneider and the ICO then went with the Respondent to the locker room where Schneider observed the Respondent unlock the Master combination lock on the locker. They subsequently examined both of the Respondent's lockers until they were "satisfied" that the firearm was not in either one. Schneider testified that the Master lock did not appear to have been tampered with or damaged and that the inside of the locker appeared to be neat and orderly. He stated that the Respondent told him that she normally kept the firearm in her duty gun belt in the back of the locker. According to Schneider, after the lockers were searched, the Respondent was directed to go home and make sure the firearm was not there, which she did.

Schneider testified that during their search for the firearm, the officer who accompanied the Respondent to the range was contacted to determine whether the two may have gotten their firearms "mixed up" at the range. He stated that the Respondent called this officer, who was not at work at the time, and obtained the combination to her lock. They then opened her locker and viewed its contents. When they determined that the gun was not there they notified the duty captain and the Internal Affairs Bureau (IAB) of the situation. Schneider testified that the locker room was secured and an officer was stationed inside the room. Later that evening, the Crime Scene Unit and two investigating sergeants arrived at the scene. When asked if it is common practice to enter the lockers of other officers when they are not present for duty, Schneider responded that it is not. He agreed that he would not do such a thing unless there was an urgent reason to do so, such as the Respondent's disclosure that her firearm was missing.

Schneider testified that he was familiar with Arleen Perez, a police officer who worked in his unit and whom he also supervised. He recalled that on August 16, 2007, Perez was already on terminal leave, and she retired at some point subsequent to that date. Schneider acknowledged that the Respondent and Perez worked together in the same room in his unit. He testified that his unit "take[s] in all the narcotics around the city on a nightly basis" and that the Respondent and Perez would "classify and break down the narcotics coming in from the outer boroughs." Schneider stated that he did not observe the Respondent and Perez have any altercation, although he was aware that there was "friction" between them. When asked if the friction ever interfered with the performance of their duties, Schneider replied that it did not. He stated that "Generally they were able to come in, act professionally and get the work done."

When asked if the Respondent ever indicated that she had been in the locker room area since going to the range, Schneider answered "a week prior or so when they had to get the serial numbers off their gas masks."

On cross-examination, Schneider acknowledged that the Respondent came to him immediately upon discovering that her firearm was missing and that she was quite certain that she had returned the gun to her locker after being at the range. When asked if he knew when the Respondent went to her locker to get the serial number off her mask, he replied, "It was upon inspection, maybe approximately a week earlier when we did it." Schneider acknowledged that the reason the Respondent went to retrieve her firearm on August 16, 2007 was that she was about to go on terminal leave. Schneider acknowledged that when members of service go on terminal leave they generally intend to retire immediately upon the leave's end, but that in the Respondent's case her intention

was to use terminal leave to extend her vacation time and then return to work. He did not know how long a terminal leave she intended to take.

Schneider acknowledged that when the Respondent told him her firearm was missing she also indicated that she believed someone had taken it. When asked why the Respondent was so certain that someone had taken it as opposed to her having lost it, Schneider replied, "Because she remember[ed] putting it into the gun belt and hanging it up in her locker like she always does." He confirmed that the Respondent did not wear her firearm every day at the laboratory and that there was no requirement that she do so.

Schneider acknowledged that he has been the Respondent's supervisor since November of 2004 and that in that period of time he had not had any disciplinary problems with her. When asked to describe the Respondent's work in the Police Laboratory, Schneider answered, "I think she is a very meticulous person and does a very good job." Asked if the Respondent is an organized person when it comes to doing her work, he replied, "Very, yes. She is very meticulous how -- what she does, how she places things, how she looks at things," qualities which, Schneider agreed, were important for work in the laboratory.

Schneider acknowledged that he became aware of a certain degree of animosity between the Respondent and Perez and stated that this was a "known problem" since before he came to the Police Laboratory. When Schneider was asked how he could tell there was animosity if there were no obvious outward instances of problems between the two of them, he answered, "Well, they didn't speak like everybody else. Pretty much the gossip people know, the prior supervisor that I replaced had said there had been a past

between them, but they do their work, they[re] professional and that's what I saw the whole time."

Schneider testified that one evening the Respondent told him that she thought Perez was trying to provoke her, and she asked him not to leave the room in which they were working. He acknowledged that the Respondent and Perez were working side-by-side that night in close physical proximity to each other. Schneider testified that the Respondent and Perez would usually work on opposite sides of the table but that on this night they were working on the same side of the table. He stated that the Respondent told him that Perez had sat down right next to her. The Respondent asked him if she could work on the computer instead and he told her that she could. When asked if there were any more problems with the Respondent and Perez that night, Schneider replied that there were not. According to Schneider, by August 16, 2007 (the date the Respondent reported her firearm missing), Perez was no longer working at the Police Laboratory, although he could not recall how long she had been gone prior to that date.

When asked if there are instances where a supervisor will call an officer for his or her combination to their lock in order to access their locker, Schneider replied that this has happened in the past, "but it's very rare." He acknowledged that with respect to the Respondent's situation, he did it because he thought she and the officer with whom she went to the range might have gotten their firearms mixed up. "It was a possibility," stated Schneider. He clarified that he did not call this officer on the phone, obtain her combination, and open her locker himself; the Respondent did. Schneider agreed that, to his knowledge, he was the first person the Respondent spoke with about her missing firearm.

On redirect examination, Schneider acknowledged that even though the Respondent was certain she had put her firearm in her locker, he wanted her to check all other possibilities and therefore directed her to search the second locker, the locker room area, and her residence before he notified IAB. He agreed that he did so because he wanted to give her the opportunity to locate the firearm before he began an official investigation.

Schneider testified that the Respondent told him she felt Perez was trying to provoke her when Perez sat down next to her, because it was something that she did not normally do. He testified he did not observe Perez do this and acknowledged that he did not observe her doing anything improper that night. When asked if Perez had ever asked him to separate her from the Respondent, Schneider replied that she had not, nor had she ever asked him for any special assignments within the laboratory so she would not have to interact with the Respondent. He agreed that his only knowledge of the incident between the Respondent and Perez is what the Respondent told him.

On questioning by the Court, Schneider testified that he believed that at one time, prior to his assignment to the laboratory, the Respondent and Perez shared a locker. He also believed that once he was assigned there, this was no longer the case. Schneider acknowledged it was his understanding that, prior to his coming to the laboratory, the Respondent and Perez shared each other's combinations to each other's locks, but did not know whether this practice continued once he was assigned there. When asked if he changed the locks upon his assignment to the laboratory, Schneider responded that he did not.

On re-cross examination, Schneider testified that the Respondent, not the supervisor whom he replaced, told him that she used to share a locker with Perez and that they had each other's combinations. When asked by the Court if he was there prior to becoming a supervisor, Schneider replied that he was not.

The Respondent's Case

The Respondent called retired Police Officer Arleen Perez¹ as a witness and testified in her own behalf.

The Respondent

The Respondent is a 22-year member of the Department currently assigned to the Forensic Investigations Division. She testified that she works a 2200 by 0623 midnight tour, during which she is responsible for evidence intake. The Respondent explained that during the midnight tour, all the narcotics evidence from the boroughs is brought in, and it is her responsibility to verify that the paperwork is properly done and that all the evidence coincides with the vouchers and transmittals. She acknowledged that organization is a critical aspect of her job and explained that she has to be very meticulous because if there is evidence missing, she must notify both her immediate supervisor and the command in question.

The Respondent testified that she told her supervisor, Sergeant Schneider, that she was going to take vacation time and part of her terminal leave and then return to the Department. Schneider told her to prepare her discontinuance forms, and he would need

¹Perez's testimony followed that of the Respondent.

to verify the serial numbers on the mace and the two firearms she possessed before she could go on vacation.

The Respondent testified that on August 16, 2007, she went down to the second floor locker room where she has two lockers. She went to the locker where she keeps her gun belt, vest, and helmet. She then opened the locker, moved her uniform, and reached over to the left side back hook where she always hangs her gun belt. She found that her holster, handcuffs, and mace were there, but her .38 caliber service revolver was missing from the holster. She stated that she last saw her firearm when she went to qualify at the outdoor range in the Bronx on July 10, 2007. When asked if she had used the firearm at all from July 10, 2007 to August 16, 2007, she replied that she had not. When asked if she uses the firearm at work or if she ever brings it home, she replied that she does not.

The Respondent testified that she has known retired Police Officer Arleen Perez since 1988 when they were both assigned to the 13 Precinct and that at one time they were "very friendly." She stated that "there were different disagreements at the Police Laboratory where she and I no longer became friends."

During the period when she was still friends with Perez, the Respondent separately shared a locker with Police Officer Rose Josephson, now retired. She testified that the combination to the lock on that locker was 26-12-34 and that only she and Josephson had access to it. She acknowledged that this lock was on the locker that contained her firearm when it went missing. The Respondent could not recall the number on the locker she shared with Josephson but stated that it was in the area where Perez had two lockers. When asked if Perez shared that locker or kept any of her things in it, the Respondent replied that she did not. The Respondent stated that it was possible that

Perez had the combination to the locker, because all three of them were friendly at that time.²

According to the Respondent, she kept the locker after Josephson retired "because all I had was another lock, so that was my second locker. I kept that locker with the same lock, and then when other officers got transferred and Officer Arleen Mazda got transferred to the laboratory, I told her 'You can have this big locker and I will find a little one.' At that point, I gave her that lock³, that locker, and then I got another locker on the other side where my locker -- where I kept my gun belt and all my equipment, so then I had two lockers in the same vicinity together. At that point I just swapped the combinations of those lockers." The Respondent never gave Perez the combination to the lock that she shared with Josephson. She confirmed that she did, however, give Perez the combination to the lock on her other locker, which was not the locker containing her firearm. The Respondent agreed that once she had become unfriendly with Perez, she would not have put a lock with a combination known to Perez on her (the Respondent's) locker.

The Respondent testified that around 2002 or 2003, there was a female sergeant assigned to the laboratory who behaved "very antagonistic" towards the people working there at that time. She stated that Perez, "who I thought was my friend," became "very friendly" towards this sergeant. The Respondent testified that upon her return from foot surgery in 2003, Perez, the sergeant, and some of the police officers were "trying to ostracize me." According to the Respondent, she "maintains a professional environment"

² The Respondent subsequently testified that she never gave Perez the combination 26-12-34 to the lock that secured her gun.

³ The Respondent either misspoke and meant to say "locker" or there is an error in the transcript because in subsequent testimony the Respondent stated that she did not give the lock to anyone.

at work and, as such, she and Perez were “civil” towards one another, although they were no longer friends.

The Respondent testified that several months after her return to work, she told Perez that she “didn’t appreciate her behavior towards me” especially because she was there for Perez when Perez’s marriage was faltering. She stated that Perez would call her at four o’clock in the morning and the Respondent would try to console her. She also invited Perez to her house for dinner, and they socialized outside of work. She testified that she told Perez that she “didn’t appreciate” the “ostracizing.... So I told her that relationship that we had in the past, I told her this at work, I said, ‘That relationship that we had in the past is history and you and I will no longer be friends and the only relationship that we will ever have is a working-type relationship.’” She estimated that she had this conversation with Perez in 2004. Due to gossip at work, however, the Respondent became aware that Perez held her responsible for problems she was experiencing at the time. According to the Respondent, “...officers were saying that she was talking to some of her confidants that she thought I ratted her out and that’s why she was hav[ing] all the problems with the Department as far as being investigated for something.” The Respondent testified that she did not make any complaints against Perez, nor did Perez ever confront her over the issue.

According to the Respondent, on the evening of July 10, 2007, which was the last time that she saw her firearm, Perez was not present at the laboratory. She testified that in August of 2007, when she reported her firearm missing, Perez was either on vacation or on terminal leave. The Respondent could not recall when she last saw Perez prior to August of 2007, but estimated that it was perhaps a week before. She maintained that

Perez was still working at the laboratory at some point between July 10, 2007 and August 16, 2007.

The Respondent further testified that under normal circumstances, she and Perez would be seated at opposite ends of the table while "classifying narcotics." She stated that about one month before discovering that her firearm was not in her locker, an incident occurred during which Perez sat "literally right next to me." Although she maintained that she had a professional working relationship with Perez, she stated that she "wanted no close proximity with Officer Perez." According to the Respondent, "We were handling one of the boroughs.... It was a big bag of narcotics. That big bag was put on top of the table. She opened the bag up and she started tossing the bags of the narcotics from the individual precincts over to my work environment, so at that point, I just simply shoved it over so I can be able to work and break down my narcotics, verify vouchers.... She continued to push it on my side. I asked her, I said, 'Do me a favor, I am working right now.' I was classifying that evening. I said, 'Could you move down a little bit? I am working here.' She said, 'No, why don't you move down, why don't you go to the other side of the table?' I said, 'If I move any further, I would be in the other room.' She wouldn't budge. She remained there and then I just moved a little bit further down."

The Respondent testified that when Sergeant Schneider came in that night, she asked if he would remain on the floor where she worked, rather than go downstairs to the Ballistics Unit, which he also supervised. Schneider agreed, after which the Respondent spoke to him in private and told him that Perez was being "antagonistic" towards her and that after 20 years with the Department and with two daughters to support, she was not

“going to get hooked by her” and “get into an altercation with her.” The Respondent requested that Schneider allow her to do computer entries rather than narcotics work, to which Schneider agreed. According to the Respondent, Schneider told her he had never before seen Perez sit so close to her, to which the Respondent replied, “She was so close to me I thought she was going to give me a lap dance.”

The Respondent was presented with DX 1H, which she identified as a photograph of the locker in which she keeps her uniform. She acknowledged that the photograph depicts a combination lock on the locker and that the lock and the locker do not show evidence of having been tampered with. The Respondent was then presented with DX 1N, which she identified as a photograph of the same locker with the door open. She testified that she kept her firearm on the gun belt and that the Crime Scene Unit officer who came to take the photographs and dust for fingerprints directed her to take the belt out and remove the holster. According to the Respondent, after she removed the holster the Crime Scene Unit officer said to her, “...I should have taken the picture with your gun belt, your holster, inside the full gun belt in the back.” When the Respondent asked her if she should put the holster back on the belt and put it back on the hook, the officer said, “No, no, that’s all right. I will just take the pictures like that.”

The Respondent was presented with DX 1O, which she identified as a photograph of the holster where she kept her missing .38 caliber service firearm. She acknowledged that her holster would normally be attached to the gun belt, but in the photographs it was not. She further acknowledged that everything else was intact on the gun belt on August 16, 2007, when she opened her locker.

When asked if the clothes in the locker would have blocked her view of the gun belt and her firearm in the back of the locker, the Respondent replied that they would. She explained that it was her habit to hang her gun belt in the back of the locker on the left side with the butt of the firearm facing the back wall of the locker.

When further asked if there were an instance when she was caught sleeping in the locker room, the Respondent stated that she was not caught sleeping. She testified that one evening, following her tour of duty, she was experiencing menstrual cramps and she went downstairs to the locker room. According to the Respondent, she was there for approximately 15 minutes when she heard a female sergeant and a male lieutenant talking outside the locker room. The sergeant came into the locker room and indicated to the lieutenant that the Respondent was dressed. The lieutenant then came into the locker room and ordered the Respondent to get up and come outside, which she did. The Respondent estimated that this incident occurred in October of 2003, a time when she was still friendly with Perez.

The Respondent acknowledged that she was told that Perez was planning to retaliate against her for what Perez mistakenly believed was an act of betrayal on the part of the Respondent. She explained that Police Officer Edward Brennan, who is the Patrolmen's Benevolent Association delegate at the Police Laboratory, told her that Perez and another female officer, Police Officer Russo, had had a falling out and that Russo was now "blabbing her mouth" about Perez to Brennan. "[S]he indicated to him that Perez had mentioned to her, when they were friends, that she was going to get me because -- and she had big plans for me before she retired. So I took it as a joke." The Respondent stated that she told Brennan that Perez could make any allegation that she

wanted to and “left it at that.” She could not recall the exact time she had the conversation with Brennan, but estimated that it was around 2006 or 2007.

When asked if she knew where her firearm is today, the Respondent replied that she did not. Asked if she failed and neglected to secure the firearm, the Respondent answered that she did not. The Respondent acknowledged that it was her belief that someone intentionally took the firearm from her locker.

On cross-examination, the Respondent acknowledged that she learned of Perez’s alleged retaliation against her from Brennan, who allegedly heard it from Russo, who allegedly heard it from Perez, and that Perez never made mention of such intentions to her personally.

On questioning by the Court, the Respondent testified that the lock on the locker in which her service firearm was kept was at one time utilized by both herself and Police Officer Josephson. She testified that she believed there was a possibility that Josephson may have given Perez the combination to that lock, but conceded that she did not know this for certain.

The Respondent was again shown DX 1N, the photograph of the interior of the locker where she kept her firearm. She confirmed that the gun belt was in the position where she normally kept it, but the clothing was not. She stated that the Crime Scene Unit officer had her move the clothing over in order to expose the gun belt so she could photograph it. The Respondent confirmed that the gun would have been facing the back of the locker and that its handle would have protruded approximately three inches out of the holster. On questioning by the Court, the Respondent acknowledged that the photograph of her locker showed her holster and mace on a shelf where she had placed

them after being directed to remove them from her gun belt by the Crime Scene Unit officer.

The Respondent acknowledged that the lock on the locker from which her firearm was missing was the lock that she used to share with Josephson and that she (the Respondent) was the owner of the lock. She admitted that she had no personal knowledge that Josephson gave the combination to the lock to Perez. The Respondent further acknowledged that Perez did not keep any items in the locker that the Respondent shared with Josephson, nor did she ever see Perez access it. The Respondent testified that, besides her gun, she also kept her vest, a pair of "duty pants," several shirts, her shield, nameplate, collar brass, gun cleaning kit, and mask. When asked if she carried her shield on a regular basis, she replied that she did not.

When asked which locker it was for which she gave the lock combination to Perez, the Respondent replied that that locker was an extra one she had on the second floor. She testified she kept extra uniforms, raincoats, and pants in this locker, and that the combination for the lock on this locker was 3-18-36. The combination to the lock on the locker from which her gun went missing and which she had once shared with Josephson was 26-12-34.

When asked if when she went to the locker to get the serial numbers off her mask did she check to see if her gun was there, the Respondent replied that she did not. When asked if Perez ever went into her locker to retrieve anything or to check anything, the Respondent replied that Perez called her at home to get the combination to her lock because a sergeant at the laboratory needed the serial number to her vest. However, upon questioning by the Court, the Respondent clarified that she gave Perez the combination 3-

18-36, which was not the combination to the lock on the locker from which her firearm was missing. The Respondent conceded that she had no evidence that Perez took the gun from her locker, she did not see her take it, and no one told her that she took it.

On redirect examination, the Respondent agreed that the lock on the locker from which the firearm went missing had the same combination as the one she shared with Josephson and that she never gave this combination to Perez, nor did she know if Josephson ever gave it to her.

On re-cross examination, the Respondent confirmed that she underwent an official Department interview on August 17, 2007, during which she was asked if she believed her firearm was stolen, to which she responded that she did. When asked during this interview if anyone else had the locker combination, the Respondent answered, "someone else who had it years ago, and I mean maybe five, six years ago." When asked if the interviewer was referring to the combination to the lock on the locker from which her gun went missing, the Respondent replied, "I believe that's what they were referring to." She confirmed that when she was asked which officer had the locker combination from which her firearm went missing, she responded, "Officer Perez." The Respondent denied that during her official Department interview she testified that Perez stole the gun. "I never indicated to them that Officer Perez stole the gun. I indicated to them that Officer Perez at one time had my combination." On questioning by the Court, the Respondent again denied giving Perez the combination to the lock that secured the locker where she kept her firearm. She reiterated that she gave Perez the combination 3-18-36. "Unbeknownst to me, and I guess I didn't recall at that time, I never gave Perez 26-12-

34, which is the combination, at that point, that I shared with Officer Josephson who is retired.”

With regard to her official interview she was asked the following questions at trial and gave the following answers relevant to the lock securing her gun:

- Q. Were you referring to that combination (26-12-34) in your GO-15?
- A. I guess I wasn't. I was referring to the other combination.
- Q. So they are asking you -- you are talking about the locker where the gun was stolen, right?
- A. Correct.
- Q. They are asking you does somebody have the combination?
- A. Correct.
- Q. And you said yes, Officer Perez has the combination because I gave it to her?
- A. Correct.
- Q. That's what you told them then?
- A. Yes.
- Q. But now you are saying that the lock that was on that locker is the one that you shared with Rose?
- A. Correct.
- Q. That you never gave to Officer Perez?
- A. I never gave it to her.
- Q. So you told them something different in the GO than you are saying now. Is that fair to say?
- A. What is fair to say is that during the GO everything happened really quickly. In retrospect, when I was thinking about it, trying to figure out how did she manage to get that combo because as I stated earlier in my testimony, I had swapped those locks.

Q. So are you saying the night this happened, you didn't realize which lock was on the locker that had the gun in it? Is that what you are saying?

A. Yes, I guess I am. I have those combinations in my bag. I know which combination I had given to her.

Q. So at the time of the GO, you thought that the lock that is on the locker where the gun went missing is the one where you have given Officer Perez the number?

A. Correct, yes. At that time, yes.

On questioning by the Court, the Respondent confirmed that the information she gave during her official Department interview about giving Perez that combination was incorrect and that "It was actually the other combination."

On redirect examination, the Respondent admitted that she made a mistake during her official Department interview and apologized.

Police Officer Arleen Perez (retired)

Perez, a retired member of the Department, confirmed that she worked in the Forensic Investigations Division for over ten years, where her duties primarily involved evidence intake. She stated that she and the Respondent had been friendly for approximately ten years, although during that time she considered her to be an acquaintance at work and not an actual friend. When asked if she now considered the Respondent to be a "psycho," Perez responded that she did.

Perez testified that she, Josephson, and the Respondent all had access to the same locker at one time, but that she (Perez) never kept anything in the locker. She acknowledged that she once had the combination to the lock on that locker, but could no longer remember what the combination was. She testified that to her knowledge,

Josephson took the lock with her, and the locker was given to another police officer.

Perez acknowledged that she did not know for certain if Josephson owned the lock or if she actually took it. She stated, "I don't know who took it, I know I didn't, it wasn't mine."

Perez acknowledged that at one point in time, her friendship with the Respondent deteriorated to the extent that they maintained a strictly professional relationship. She further acknowledged that this occurred around the time the Respondent was found to be sleeping (allegedly) in the locker room. According to Perez, "[t]hat was the incident, but that wasn't the time that we stopped speaking on a friendly level. It was after that. She went sick for several months and then when she came back, I think that was when it happened..." When asked if the Respondent was having problems with a sergeant and a lieutenant, Perez replied "a few sergeants and a lieutenant." Perez believed that the Respondent wanted her to "gang up" on the sergeant and lieutenant to support her. But Perez's refusal to cooperate with the Respondent's wishes was not the cause of the end of their friendship. It was the Respondent's "bashing" of Perez to her colleagues that terminated their friendship. According to Perez, the "bashing made to my colleagues" by the Respondent ended any sort of friendship she shared with her. She stated that the Respondent was talking to their friends about her and the talk was "getting all over the building" and she had asked her to stop.

Perez acknowledged that there came a time when allegations of misconduct were made against her with respect to her job. When asked if she believed that the Respondent was the source of those allegations, she replied, "I knew that it wasn't her, but everyone else that I worked with thought it was her." Perez denied that she ever told anyone that

she was going to retaliate against the Respondent before she retired from the Department. Nor did she hear any rumors to that effect. What she did hear was the Respondent "asking the PBA delegate if he heard anything to give her a heads-up."

Perez confirmed that she continued to work with the Respondent after their relationship deteriorated. She testified that where they sat at the table while they sifted through evidence varied; sometimes they sat side-by-side and sometimes they sat across from one another. When asked if she recalled a specific instance when Sergeant Schneider stayed on the floor where they worked because she (Perez) was putting bags of evidence in front of the Respondent when the Respondent needed more space, she replied, "No. I remember something very different. I remember the bags were there and [the Respondent] wasn't there. She was doing something else. But she put the bag on the table. That's regular procedure, that's normally how it's done. Someone brings them in, we all break them down. The bag was put directly in front of me and I moved it over. And when she sat down, she moved the bag in front of me and I moved the bag over again and that was exactly how it happened." Perez was unaware if Schneider remained on the floor the entire night, but stated that he might have.

Perez acknowledged that she was working at the Forensic Investigations Division during the time period of July 10, 2007 to August 10, 2007 and confirmed that she would have had access to the female locker room during this time span. She further acknowledged that at one time she had the combination to the lock that she shared with Josephson and the Respondent.

On cross-examination, Perez acknowledged that she became unfriendly with the Respondent some time after the alleged sleeping incident in the locker room. Prior to

that, she did favors for the Respondent, such as writing a letter to the PBA for her and delivering her paycheck to her at her home. "I didn't have a problem with any of that. I do have a problem, however, with someone telling me to be mean or be a certain way towards someone else. That decision is mine and mine alone."

Perez reiterated that other people in her unit thought that the Respondent had instigated the investigation which ultimately led to charges being brought against her, but that she (Perez) knew otherwise. Perez testified that as the investigation progressed, she learned who the instigator was, and it was not the Respondent. Perez again denied that she ever told anyone at the laboratory that she was going to retaliate against the Respondent because of her disciplinary case.

Perez denied that she ever accessed the locker she shared with Josephson and the Respondent. "I never put anything in and I never took anything out," stated Perez. She denied that she had the lock's combination committed to memory at that time; rather, Josephson had written it down for her. When asked if she could identify the lock now, she answered that she could not.

At trial, the following exchange occurred with regard to Perez and the Respondent's lock and locker:

- Q. Did [the Respondent] give you the combination to any of her other locks or any of [the] other lockers?
- A. No.
- Q. Did you ever access any of [the Respondent's] lockers when she wasn't present?
- A. No.
- Q. Did she ever ask you to go in her locker and check on a serial number because a supervisor wanted it?

A. No.

Q. Did you ever give [the Respondent] the combination to your locks?

A. Not that I could remember, no.

Q. Have you ever taken anything out of any of [the Respondent's] lockers?

A. No.

Q. Between the time of July and August of 2007, did you take a firearm out of [the Respondent's] locker?

A. No.

On redirect examination, Perez acknowledged that the Respondent's work at the laboratory was organized and professional. When asked how she felt about the Respondent now, she answered, "I don't feel anything towards her." When asked if she believed if the Respondent was "psychotic" towards her, she replied, "Not towards me. I think -- not psychotic, I think mean-spirited, extremely mean-spirited." Perez stated that the Respondent listened to her when she was undergoing marital difficulties, but added "...I listened to her, too, when she came to me with stories with the ex-husband when she punched the girlfriend in the face."

FINDINGS AND ANALYSIS

The Respondent is charged with failing to safeguard her firearm. I find the Respondent Guilty as charged because the evidence presented at trial did not negate or release the Respondent from her duty to safeguard her firearm.

On August 16, 2007, the Respondent discovered that her firearm was missing. She testified that the last time she used the firearm was at the Department's firearms

range, on July 10, 2007. She claimed that after firing the gun at the range she returned it to her locker where she keeps it even when off-duty.

In the opinion of this Court, the Respondent had no reasonable, credible explanation for her gun being missing other than her vague allegations that Perez, a retired police officer and former friend, took the gun in retaliation for a feud that ended their friendship. While there may have been animosity between the two, it is sheer conjecture that Perez took the gun: the Respondent did not see her take the gun; she was not told by any witnesses that she took it; no witnesses testified that they saw her take it; forensic evidence did not show that Perez was in the Respondent's locker and Perez denied taking it.

The only evidence that the Respondent provided in support of her allegations is that Perez once shared a locker with the Respondent and another officer, Josephson. Josephson, according to the Respondent, once had the combination to the lock that secured the locker containing the Respondent's gun and according to Josephson may have given Perez the combination to that lock. Josephson, however, did not testify at trial and Perez, while admitting that she once had a combination to a lock that the three of them shared, could not remember which lock it was and never kept anything in their shared locker. In addition, the Respondent testified that she did not give Perez the combination to the lock that secured her gun.

It is also the opinion of this Court that even if there was evidence that Perez had been given the combination to that lock, that fact alone does not prove that she took the gun from the Respondent's locker. In fact the only credible evidence presented to this Court was that the Respondent used her gun at the range and thereafter could not produce

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it when asked to do so. Moreover, her use of her gun on July 10, 2007 also raises doubts about the gun being stolen because she admittedly does not remove her gun from her locker and for it to be missing shortly after she used it at the range makes it highly probable that the responsibility for the missing gun lies with the Respondent.

Therefore, Respondent had a duty and obligation as a police officer to safeguard her firearm and that included being aware of its whereabouts at all times. She clearly failed to fulfill that obligation and as a result her firearm is missing.

Accordingly, the Respondent is found Guilty as charged.

PENALTY

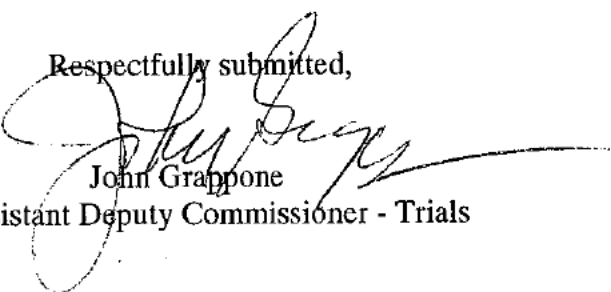
In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed on July 15, 1986. Information from her personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found guilty of failing and neglecting to safeguard her firearm, resulting in the loss of that firearm. In Disciplinary Case No. 79799/04, a seventeen-year member with one prior disciplinary adjudication for unauthorized off-duty employment forfeited 15 vacation days for failing to safeguard his firearm.

Accordingly, I recommend that the Respondent receive a penalty of a forfeiture of 15 vacation days.

Respectfully submitted,


John Grappone
Assistant Deputy Commissioner - Trials

